WEB COPY

Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR. JUSTICE N.RAMESH

Crl.O.P.No.30876 of 2026

Case QR

CNR: {HCMA012567182026}

M.Selvakumar ..Petitioner(s)

Vs

The State Rep by,
The Inspector of Police
Ennore All Women Police Station,
Thiruvallur District.
Crime No.41 of 2026. ..Respondent(s)

PRAYER: Criminal Original Petition is filed petition under Section 483 of Bharatiya Nagarik Suraksha Sanhita, 2023, to enlarge on Bail in Crime No.41 of 2026 on the file of the Respondent Police.

For Petitioner(s) : Mr. Suriyamuthu N
For Respondent(s) : Mrs.R.S.Indira
Additional Public Prosecutor

ORDER

The petitioner, who was arrested and remanded to judicial custody on 15.09.2026 for the alleged offences punishable under Sections 7 and 8 Protection of Children from Sexual Offences (POCSO) Act, 2012 in Crime No.41 of 2026, on the file of the respondent police, seeks regular bail.

2. The case of the prosecution is that the petitioner is aged about 26 years and the victim child is a girl aged about 4 years. It is alleged that the

https://www.mhc.tn.gov.in/judis

WEB COPY

petitioner had committed sexual assault on the victim girl. Consequently, the present case was registered against the petitioner.

3. Learned counsel appearing for the petitioner submits that the petitioner is innocent and has been falsely implicated in the present case. He further undertakes that the petitioner will strictly abide by any stringent conditions imposed by this Court and will co-operate in the investigation. He further submits that the petitioner has been incarcerated in judicial custody since 15.09.2026. Hence, he prays that the petitioner may be granted bail.

4. On the other hand, the learned Additional Public Prosecutor appearing for the respondent strongly opposes the grant of bail to the petitioner and produced the statement of the victim girl recorded under Section 183 of BNSS. She further submits that the present case is under investigation.

5. I have gone through the statement of the victim girl. Considering the fact that the investigation in this case is still pending and taking note of the period of incarceration undergone by the petitioner since 15.09.2026, this Court is inclined to grant regular bail to the petitioner, subject to strict conditions to ensure his presence during the trial.

6. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of Rs.25,000/- (Rupees Twenty Five Thousand

https://www.mhc.tn.gov.in/judis

WEB COPY

only) with two sureties, each for a like sum to the satisfaction of the **Special POCSO Judge, Thiruvallur,** and on further conditions that:

[a] The sureties shall affix his photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure his identity;

[b] The petitioner shall report before the respondent police daily at 10.30 a.m. until further orders;

[c] The petitioner shall not abscond either during investigation or trial;

[d] The petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Judge/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Judge/Trial Court himself as laid down by the Hon'ble Supreme Court in P.K.Shaji vs. State of Kerala [(2005)13 SCC 283]; and

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23-10-2026

Neutral Citation: Yes/No

ham

https://www.mhc.tn.gov.in/judis

WEB COPY

Note:

1. Registry is directed to forthwith upload this order on the Official Website of this Court.

2. All concerned to act on this order being uploaded on Official Website of this Court without insisting on certified hard copies. To be noted, this order, when uploaded on the official website of this Court, will be watermarked and will also have a QR code.

To

1. The Special Pocso Judge,
   Thiruvallur.

2. The Inspector of Police,
   Ennore All Women Police Station,
   Thiruvallur District.

3. The Superintendent,
   Central Prison – II, Puzhal.

4. The Public Prosecutor,
   High Court of Madras.

https://www.mhc.tn.gov.in/judis

WEB COPY

N.RAMESH, J.

ham

Crl.O.P.No.30876 of 2026

23-10-2026

https://www.mhc.tn.gov.in/judis